

HOUSE BILL 1789

By Reedy

AN ACT to amend Tennessee Code Annotated, Title 49,
relative to higher education.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 49-7-168(b), is amended by deleting the language "49-8-104" and substituting instead the language "49-8-102, 49-8-104,".

SECTION 2. Tennessee Code Annotated, Section 49-7-168, is amended by adding the following as a new subsection:

(d) Notwithstanding §§ 49-8-102, 49-8-104, and 49-9-105, an institution of higher education in this state shall classify a student who is the spouse of a service member who is a United States citizen or lawful permanent resident of the United States, but who has not resided in this state for the one-year period described in subdivision (c)(1)(B), as an in-state student for tuition purposes if the spouse:

(1)

(A) Is a United States citizen; or

(B) Is a lawful permanent resident of the United States;

(2) Is accepted for admission to the institution;

(3) Enrolls as a student in the institution;

(4) Resides in this state while enrolled in the institution; and

(5) Maintains continuous enrollment in the institution.

SECTION 3. Tennessee Code Annotated, Section 49-7-1303, is amended by deleting subdivision (1) and substituting instead the following:

(1) "Military-affiliated" means active-duty military personnel, reservists, members of the national guard, reserve officer training corps program cadets, and dependents of active-duty military personnel or veterans;

SECTION 4. Tennessee Code Annotated, Section 49-7-1304(b), is amended by deleting the language "may classify" and substituting instead "shall classify".

SECTION 5. This act takes effect July 1, 2026, the public welfare requiring it, and applies to the 2026-2027 academic year and each academic year thereafter.